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LICENSING AGREEMENT

This Licensing Agreement (the "**Agreement**") is entered into as of September 27th, 2024 (the "**Effective Date**") by and between ZERO X AND PTE. LTD. (the "**Supplier**") and **Xsolla (USA), Inc.** ("**Xsolla**"). The Supplier and Xsolla may be individually referred to herein as a "**Party**" or collectively as the "**Parties**".

RECITALS

A. The Supplier develops, publishes, licenses, and distributes consumer software entertainment products.

B. The Supplier utilizes or intends to utilize digital distribution technology pursuant to which End-Users (as defined below) can download Supplier's Software through the Supplier Website or certain other third-party sites and platform storefronts designated by the Supplier (the "**Download Service**").

C. Xsolla has created, owns, hosts, and maintains a commerce solution, operated through the Xsolla Systems (as defined below).

D. The Supplier wishes to engage Xsolla to sell, market, make available, deliver, and distribute Supplier's products, as the merchant of record.

E. The Supplier wishes to grant to Xsolla and Xsolla wishes to receive a license to use, sell, market, make available, deliver, and distribute Supplier's Software to End-Users.

F. The Supplier intends to integrate the Xsolla Systems into their Download Service to streamline product delivery.

G. The Supplier may engage Xsolla for a distribution via the Cloud Gaming solution ("**Cloud Gaming**"), which allows End-Users to stream video games over the internet from a remote server provided by Xsolla (rather than installing and playing games on their local devices). End-Users can join the Cloud Gaming Platform, where they have access to the Xsolla Solutions and use an unified in-game currency ("**Virtual Currency**") across various games and other Xsolla products.

H. Xsolla wishes to provide some of Supplier's Software in digital format to End-Users, who can access it through either the Xsolla Systems or the Download Service using the Xsolla Systems. These actions will be governed by the terms and conditions outlined below.

I. The Supplier desires to grant Xsolla those rights expressly listed in Section 2 below for such purpose, and Xsolla desires to grant the Supplier those rights expressly listed in Section 3 below for such purpose, in each case subject to the terms and conditions set forth in this Agreement.

NOW, THEREFORE, in consideration of the mutual representations and covenants set out in this Agreement and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the Supplier and Xsolla hereby agree as follows:

1. DEFINITIONS

1.1. "**Account**" or "**Publisher Account**" means the online database maintained by Xsolla that gives the Supplier access to real-time information on End-User Sales, such as transactional information, rates, commissions, and refunds. The Account also keeps track of the Royalty Fees due under this Agreement and gives the Supplier access to all the data they need to properly manage their account.

1.2. "**Affiliates**" means with respect to any specified entity, any other entity that, directly or indirectly, through one or more intermediaries, controls, is controlled by, or is under common control with that specified entity. For purposes of this definition, "control" means, with respect to: (a) a corporation, the ownership of 50% or more of the voting power to elect directors thereof; and (b) any other entity, power to direct the management of such entity.

1.3. "**Bug**" means any mistake, problem, defect, malfunction, or deficiency in the Software.

1.4. "**Business Day**" means any day other than Saturday, Sunday, or any U.S. banking holiday.

1.5. "**Cloud Gaming**" means a gaming solution that allows End-Users to stream video games over the internet from a remote server provided by Xsolla (rather than installing and playing games on their local devices) by way of the Supplier hosting their games on the Cloud Gaming Platform.

1.6. "**Cloud Gaming Platform**" means the website, web interface or distribution platform available on https://x.la/cg, its subdomains, owned, operated and maintained by Xsolla and/or its Affiliates offering Software to End-Users, which allows End-Users to buy Virtual Currency which they can use to view streams or play games developed by the Supplier.

1.7. "**Device**" means a data processing machine, including, without limitation, a desktop computer, laptop, mobile phone, tablet, or other consumer electronic device.

1.8. "**Documentation**" means any written materials pertaining to the Software, including user manuals, reference manuals, training manuals, installation manuals, and software build instructions.

1.9. "**End-User**" means a natural person that sublicenses the Software from Xsolla.

1.10. "**End-User Fee**" means the total amount charged to an End-User by Xsolla in connection with an End-User Sale, as mutually agreed upon by the Parties in writing from time to time and subject to adjustment in respect of any currency conversion rate.

1.11. "**End-User ID Number**" means a unique number assigned to each End-User by Xsolla for the Publisher Account.

1.12. "**End-User Sale**" means Xsolla's sublicense of the Software to an End-User pursuant to the terms of this Agreement.

1.13. "**Intellectual Property Rights**" means any rights under patent, copyright, trade secret, trademark, and similar intellectual property rights Territory Laws and Regulations throughout the world.

1.14. "**Marks**" means trade names, logos, registered and unregistered trademarks, and service marks. Marks may include Marks duly licensed by one Party from an Affiliate of such Party or from a third party pursuant to a valid licensing agreement.

1.15. "**Reporting Period**" will have the meaning given from time to time in Part B: Contracting Party's Revenue Share of the For of Report in Exhibit 2.

1.16. "**Software**" means the consumer software entertainment products described in Exhibit 4 attached hereto, including video games, digital content, digital currency, virtual objects and artifacts that can be acquired and used within the game, or other additional content and features and its associated documentation.

1.17. "**Supplier Website**" means any website owned or managed by the Supplier that hosts the Software.

1.18. "**Technical Documentation**" means documentation found at https://developers.xsolla.com/ provided by Xsolla to the Supplier that sets forth the requirements for the technical interaction of the Parties in connection with this Agreement, including requirements for electronic formats, usable tools, and networks for any integration of the Parties' systems, as may be updated from time to time by Xsolla.

1.19. "**Territory**" means worldwide, with the exclusion of countries and territories listed on the Office of Foreign Assets Control ("OFAC") list of the U.S. Department of the Treasury, or on any similar list maintained by any other relevant government agency or authority.

1.20. "**Territory Laws and Regulations**" means all laws and regulations applicable to game development and e-commerce, including but not limited to obtaining age ratings and certifications for Software distribution, implementing parental controls to protect minors, and any other relevant laws or regulations governing the sale of software or the video game industry. This also includes compliance with Applicable Data Protection Legislation (as defined in Section 8) as required by law.

1.21. "**User Documentation**" means Supplier's then-current standard End-User operating instructions and requirements for the Software provided by the Supplier to Xsolla from time to time, in electronic form.

1.22. "**Virtual Currency**" means a type of digital in-game currency that can only be used on the Cloud Gaming Platform. Virtual Currency holds no actual value in the real world and cannot be converted into any other currency. For calculation purposes, each Virtual Currency has a fixed value expressed in U.S. dollars.

1.23. "**Xsolla Mall**" means the website, web interface or distribution platform available on https://x.la, its subdomains, owned, operated and maintained by Xsolla and/or its Affiliates offering Software to End-Users.

1.24. "**Xsolla Solutions**" means both Xsolla Mall and Cloud Gaming Platform.

1.25. "**Xsolla Systems**" means any software, software development kits (SDKs), application program interfaces (APIs), and any other technology ("Xsolla Products") that Xsolla makes available to the Supplier from time to time under the terms of this Licensing Agreement or in accordance with the Xsolla Product Licensing Agreement as it described in Section 3.6 hereunder. This includes but is not limited to the Publisher Account and Pay Station - a tool that allows for the accepting of payments for online gaming and game-related purchases by providing access to many different payment methods worldwide offered by and through various licensed money service businesses and payment service providers, and any other technology that Xsolla makes available to the Supplier from time to time in connection with this Agreement. The use of a separate Xsolla Product included with Xsolla Systems may result in a royalty fee. The existence of such a royalty fee may be reflected in this Agreement or the Account, and will be displayed in the Report, if applicable.

2. SOFTWARE LICENSE AND SOFTWARE PRICE

2.1. License Grant: The Supplier grants to Xsolla a non-exclusive, non-transferable, limited, and irrevocable license to use the Software for the specific purpose of acting as a Merchant of Record ("**MOR**") to market and sublicense the Software to End-Users in the Territory during the term of this Agreement, subject to the restrictions outlined in Section 2.5 (the "Software License"). The license includes, but not limited to the following rights:

(a) **Access**. Xsolla may access the Software on the Supplier Website.
(b) **Installation**. Xsolla may install and launch the Software on Devices of Xsolla, its Affiliates and End-Users.
(c) **Customization**. Xsolla may customize the Software as permitted by the Supplier.
(d) **User Documentation**. Xsolla may provide the User Documentation to End-Users.
(e) **Sublicensing**. Xsolla may sublicense the Software to End-Users and Xsolla Affiliates.

2.2. As the MOR, Xsolla will be responsible for interacting with End-Users, including handling payments, refunds, and customer support inquiries. Xsolla will ensure that all such interactions are carried out in accordance with Territory Laws and Regulations.

2.3. The Software License includes all updates, upgrades, and modifications to the Software made available by the Supplier during the Term.

2.4. Subject to the Software License, Xsolla acknowledges that the Supplier and its licensors retain all Intellectual Property Rights in and to the ideas, concepts, techniques, inventions, processes, software, and works of authorship embodied in the Software, including, without limitation, modifications, enhancements, derivative works, configurations, translations, upgrades, and interfaces thereto.

2.5. Except as permitted under the Software License or as otherwise approved by the Supplier in writing, Xsolla may not rent, lease, lend, sell, redistribute, or sublicense the Software to any third party and may not copy, decompile, display, distribute, reverse engineer, disassemble, or otherwise attempt to derive the source code of the Software or create derivative works thereof.

2.6. Without limiting the termination provisions set forth in Section 11, the Supplier may limit, suspend, or

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terminate the Software License and Xsolla's access to the Software at any time in the event of Xsolla's breach of any of the restrictions set forth in this Section 2.

2.7. The Supplier shall provide Xsolla with suggested retail prices for the Software that Xsolla will deliver or distribute in accordance with this Agreement. Xsolla, as the MOR, shall have the right to set the prices at which Xsolla offers to deliver or distribute the Software to End-Users, notwithstanding any suggested retail prices. Xsolla may apply additional costs and taxes to the Software base taking into account all possible and applicable costs and taxes as specified in Exhibit 1 of this Agreement.

2.8. Notwithstanding the foregoing, Xsolla has no obligation to market, sublicense, sell, or distribute the Software to End-Users.

3. XSOLLA SYSTEMS LICENSE

3.1. During the Term and subject to the terms of this Agreement, and to further facilitate Xsolla's role as MOR, Xsolla hereby grants to the Supplier a non-exclusive, non-transferable, limited, and irrevocable license to the Xsolla Systems solely for the purpose of facilitating Xsolla's sublicense of the Software to End-Users in the applicable Territory pursuant to the Technical Documentation and this Agreement (the "**Xsolla Systems License**").

3.2. Xsolla may, without prior notice, modify the Xsolla Systems at any time by adding or removing features and functionality. The Xsolla Systems License includes all updates, upgrades, and modifications to the Xsolla Systems made available by Xsolla to the Supplier during the Term. In the event of significant modifications, Xsolla will notify the Supplier via Account. A "significant modifications" is defined as any change that affects Supplier's rights and responsibilities under this Agreement for the purposes of this Section 3.2.

3.3. The Supplier acknowledges that Xsolla and its licensors maintain all Intellectual Property Rights to the concepts, ideas, techniques, inventions, processes, software, and works of authorship that form part of the Xsolla Systems. This includes modifications, enhancements, derivative works, configurations, translations, upgrades, and interfaces related to the Xsolla Systems, subject to the terms of the Xsolla Systems License.

3.4. Except as permitted under the Xsolla Systems License or as otherwise approved by Xsolla in writing, the Supplier may not rent, lease, lend, sell, redistribute, or sublicense the Xsolla Systems to any third party and may not copy, decompile, display, distribute, reverse engineer, disassemble, or otherwise attempt to derive the source code of the Xsolla Systems or create derivative works thereof.

3.5. Without limiting the termination provisions set forth in Section 11, Xsolla may limit, suspend, or terminate the Xsolla Systems License and the Supplier's access to the Xsolla Systems at any time in the event of the Supplier's breach of any of the restrictions set forth in this Section 3.

3.6. During the Term and subject to the terms of this Agreement, and only to the extent applicable or necessary, Xsolla grants to the Supplier a non-exclusive, worldwide, non-transferable, non-sublicensable, and royalty-free license to use Xsolla Products in accordance with the Xsolla Product Licensing Agreement ("**Xsolla Product License**"). Without limiting the termination provisions set forth in Section 11, Xsolla may limit, suspend, or terminate the Xsolla Product License in the event of Supplier's breach of any of the restrictions set forth hereunder. For the avoidance of doubts, this section states that the Supplier is entitled to free use of certain Xsolla Products within Xsolla Systems as long as Xsolla receives revenue from the sale of the Software. If this Agreement is terminated or the sale of the Software is deemed insufficient by Xsolla, Xsolla will offer the Supplier a royalty fee to use Xsolla's Products in accordance with the terms of Xsolla Product License.

3.7. The Supplier has the option to request access to Xsolla's pay-for-performance user acquisition network, referred to as "**Xsolla User Acquisition Technology**", which enables the conversion of new leads or potential customers into End-Users through the use of content, advertising, and promotions, facilitated by and through advertisers, promoters, or public relations firms, hereinafter referred to as "**User Acquisition Service Providers**". The User Acquisition Service Providers will be paid by Xsolla based on a revenue

share model only when a new lead or a new customer is converted into an End-User through the Xsolla User Acquisition Technology. Any fees associated with End-User Sales as a result of the Xsolla User Acquisition Technology will be calculated in accordance with the revenue formula stated in Exhibit 1.

4. SUPPLIER OBLIGATIONS

In addition to any other obligations set forth in this Agreement, the Supplier shall:

4.1. integrate the Supplier Website and its other systems and software with the Xsolla Systems as provided in the Technical Documentation and as necessary to facilitate Xsolla's sublicense of the Software to End-Users pursuant to this Agreement;

4.2. provide Xsolla with the Software, Documentation, User Documentation and notify Xsolla at least ten (10) Business Days prior to any material changes to the Software, the Documentation, or the User Documentation. For purposes of this Section 4.2, a "material change" refers to any change that would require Xsolla to substantially modify any of its obligations as provided herein, including but not limited to any rating or age-gating requirements;

4.3. use commercially reasonable efforts to notify Xsolla at least five (5) calendar days prior to non-material changes to the Software and its associated Documentation, or the User Documentation;

4.4. after completion of an End-User Sale, promptly deliver the Software to End-Users upon notice thereof from Xsolla via the Xsolla Systems;

4.5. use commercially reasonable efforts to fix Bugs in a timely manner and update Xsolla on such efforts from time to time;

4.6. use and (or) display Xsolla's marks, trademarks, tradenames, service marks, and logos (collectively "**Xsolla's Marks**") in accordance with the Technical Documentation;

4.7. comply with its applicable obligations set forth in the Technical Documentation;

4.8. inform Xsolla of any and all Territory Laws and Regulations requirements for each Software that may be sold under the terms of this Agreement at Xsolla's request. The Supplier is responsible for displaying to End-Users in each country information on any applicable ratings obtained by the Supplier from ratings or government authorities and/or assigned by the Supplier in respect of the Software as provided by the Supplier, as well as any other similar information required by the Territory Laws and Regulations;

4.9. upon Xsolla's written reasonable request, provide Xsolla with notarized copies of documents that confirm Supplier's right, title, and interest in and to the Software and power and authority to grant the Software License hereunder within five (5) Business Days after receipt of Xsolla's request;

4.10. identify Xsolla as an authorized global distributor, or licensee, or MOR of Supplier's Software if Xsolla must be mentioned on the Supplier Website or in correspondence with authorities;

4.11. amend or update Supplier's terms of service, upon request by Xsolla, for purposes that are reasonably necessary, such as compliance with Territory Laws and Regulations, or changes to the Xsolla Systems. The Supplier will make such amendments or updates within a reasonable timeframe, as requested by Xsolla, and will provide notice to End-Users regarding any changes to the terms of service; and

4.12. comply with the Public Disclosure policy, material to Section 4.12 and Section 5.8 only, which means that all public disclosures and interview questions and answers ("**Public Disclosures**") relating to Xsolla or terms of this Agreement must be pre-approved by Xsolla. For purposes of this Agreement, Public Disclosures include but are not limited to media and press releases; public announcements; news, descriptions, or information relating to Xsolla or its business activities; use of Xsolla's Marks or Xsolla Systems; or other similar information. Notwithstanding the foregoing, the Supplier may make an announcement about the partnership with Xsolla as the MOR and official distributor of Supplier's Software on the Supplier Website, including the

fact of the existence of this Agreement, without disclosing any sensitive information, such as financial information.

5. XSOLLA OBLIGATIONS

In addition to any other obligations set forth in this Agreement, Xsolla shall:

5.1. provide the Supplier commercially reasonable assistance with the integration of the Supplier's systems and software with the Xsolla Systems pursuant to the Technical Documentation; provided, however, that Xsolla is not responsible for ensuring that Supplier's systems and software are compatible with the Xsolla Systems;

5.2. promptly notify the Supplier via the Xsolla Systems upon the completion of each End-User Sale;

5.3. assign End-User ID Numbers to each End-User in accordance with the Technical Documentation;

5.4. send the Supplier requests for Bug fixes, in its discretion;

5.5. notify the Supplier about any material changes to the Publisher Account that may affect the provision of Reports (as defined below) hereunder;

5.6. use and (or) display Supplier's marks, trademarks, tradenames, service marks, and logos (collectively "**Supplier's Marks**") in accordance with the Agreement; and

5.7. comply with its applicable obligations set forth in the Technical Documentation;

5.8. comply with the Public Disclosure policy, material to Section 4.12 and Section 5.8 only, which means that all public disclosures and interview questions and answers ("**Public Disclosures**") relating to the Supplier or terms of this Agreement must be pre-approved by the Supplier. For purposes of this Agreement, Public Disclosures include but are not limited to media and press releases; public announcements; news, descriptions, or information relating to the Supplier or its business activities; or other similar information. Notwithstanding the foregoing, Xsolla may publish successful case studies and announcements or any other positive advertising elements on Xsolla website related to the partnership with the Supplier under this Agreement, that include Supplier's name, Marks, Software name and representations of Software, including the fact of the existence of this Agreement and its general terms, without disclosing any sensitive information, such as financial information.

6. ROYALTY FEES, PAYMENT TERMS, AND EXPENSES

6.1. In consideration for the Software License and other services provided hereunder, Xsolla shall pay the Supplier royalty fees calculated in accordance with Exhibit 1 attached hereto (the **"Royalty Fees"**) on a monthly basis with payment due on the 30th day after the end of each calendar month, beginning on the date Xsolla first receives End-User Fee. Xsolla shall pay the Supplier the Royalty Fees via ACH, wire, or other payment method agreed upon by the Parties to Supplier's bank account or other payment account set forth on Exhibit 1 attached hereto, which may be updated by the Supplier from time to time upon at least five (5) Business Days' prior notice to Xsolla.

6.2. The Royalty Fees and other amounts payable under this Agreement are denominated in USD. Any fees or charges associated with currency conversion will be deducted from the Royalty Fees paid to the Supplier, as outlined in Exhibit 1 attached to this Agreement. In case currency conversion is required, it will be based on the mid-market exchange rate of the corresponding currency against USD queried from xe.com on the day the settlement draft is formed ("**Exchange Rate**"). If Xsolla receives the funds from the End-User in currencies other than USD, currency conversion will be based on the Exchange Rate, subject to possible adjustments due to fluctuations of such currency during the preceding thirty (30) calendar days.

6.2.1. In regions characterized by financial instability, wherein the prevailing Exchange Rate provided by xe.com (http://xe.com/) and mentioned in Section 6.2 is deemed disadvantageous to both Parties, and

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subject to the sole decision-making authority of Xsolla, Xsolla reserves the right to utilize an alternative exchange rate provided by a payment service provider. This alternative exchange rate shall be provided through an internal channel established between Xsolla and a payment service provider. Upon Supplier's request, Xsolla shall inform of the payments service provider and the alternative exchange rate applied to a particular transaction. This provision is intended to uphold fairness and mitigate any possible financial losses resulting from unfavorable exchange rates. This provision may be applicable to the following regions:

Algeria	Laos	Pakistan
Angola	Lebanon	Somalia
Argentina	Libya	São Tomé and Príncipe
Burundi	Malawi	Sri Lanka
Congo	Maldives	Sudan
Egypt	Moldova	Suriname
Ethiopia	Mozambique	Yemen
Ghana	Myanmar	Zimbabwe
Kenya	Nigeria	

6.3. The Supplier acknowledges and agrees that Xsolla is not responsible if, through no fault of Xsolla, Supplier's bank or other payment method refuses to accept, or restricts access to, the Royalty Fees or imposes fees related to the acceptance thereof.

6.4. Xsolla shall: (a) calculate the taxes applicable to End-User Sales and the payment of the Royalty Fees to the Supplier; (b) deduct such taxes from the Royalty Fees paid to the Supplier, in accordance with Exhibit 1 attached hereto; and (c) report and remit such taxes to the appropriate taxing authorities, unless and to the extent that the Supplier provides Xsolla with evidence, satisfactory to Xsolla, upon the Effective Date, that End-User Sales or the Royalty Fees, as applicable, are not subject to any tax or are taxed at a reduced rate. The Supplier hereby expressly authorizes Xsolla to withhold the amount of withholding, VAT, income tax, equalisation levy, sales, and similar taxes applicable to End-User Sales and the payment of Royalty Fees from the Royalty Fees due hereunder, in accordance with Exhibit 1 attached hereto.

6.5. The Supplier shall at the Effective Date of this Agreement, and subsequently as requested, provide to Xsolla with a completed and valid IRS Form W-8 (of the type applicable to the Supplier) or W-9, as applicable, executed in its name or, if the Supplier is a single-member entity that is disregarded for U.S. federal income tax purposes, the name of its single owner. If the applicable documentation is not provided, Xsolla will be required by Territory Laws and Regulations to subject any payments made to backup withholding at the rates in effect at the time. Xsolla does not refund withholding taxes when there is a rate change triggered by the late provision of the form, as Xsolla would have already remitted those taxes to the IRS.

6.6. The Supplier agrees not to seek payment for Royalty Fees or other amounts for the Software sublicensed by Xsolla hereunder from End-Users or any other person or entity.

6.7. Except as otherwise expressly provided in this Agreement, each Party shall bear its own costs and expenses incurred in connection with the preparation, execution, and performance of this Agreement, including all fees and expenses of agents, representatives, financial advisors, legal counsel, and accountants.

6.8. In consideration of Cloud Gaming, the Supplier's remuneration is formed at the expense of Virtual Currency, which means that Supplier's income depends on how many hours was played by End-Users for Virtual Currency. As indicated in Section 6.8.1, all applicable fees will be deducted from this amount. The formula for calculating the Supplier's remuneration is given in the Fee Schedule.

6.8.1. The Supplier acknowledges and agrees that it may be subject to various fees and charges associated with the use of the Cloud Gaming Platform and its related services. These fees and charges may include, but are not limited to:

6.8.1.1. Cloud Gaming Platform Fees: The Supplier may be charged fees for accessing certain features or services or for using the Cloud Gaming Platform to sell or promote their games. These fees may be fixed or based on a percentage of the revenue generated by the Software, and specific conditions can be found in your account.

6.8.1.2. Payment Processing Fees: The Cloud Gaming Platform may use third-party payment processors to handle transactions between the Supplier and End-Users. These processors may charge fees for their services, which will be deducted from the earnings.

6.8.1.3. Currency Conversion Fees: In case currency conversion is required, it will be based on the mid-market Exchange Rate pursuant to Section 6.2.

6.8.1.4. Referral programs. Xsolla might work with influencers to promote the Supplier's Software. Any costs associated with such promotion will be deducted from the Supplier's earnings.

7. REPORTS

7.1. The Supplier may use the Publisher Account to view a live, up-to-date data relating to End-User Sales. Xsolla shall provide electronically a monthly report ("Report") to the Supplier, substantially in the form of the report set forth on Exhibit 2 attached hereto, within ten (10) Business Days from the end of each calendar month during the Term.

7.2. The Supplier will use commercially reasonable efforts to notify Xsolla of any errors in a Report within ninety (90) calendar days after receiving a Report for each corresponding month of delivery (each, an "Error Notice"). Each Error Notice must contain detailed information to reasonably aid in identifying the cause of the error and its correction.

7.3. Xsolla shall use commercially reasonable efforts to correct any billing error within thirty (30) calendar days of receipt of Supplier's Error Notice and provide the Supplier with a response regarding the correction (each, a "Response"). If Xsolla reasonably confirms an error, based on Supplier's notification, Xsolla shall notify the Supplier of such error and the amounts payable by or to Xsolla in the Response; if Xsolla confirms that the original Report does not contain the error(s) alleged by the Supplier, Xsolla shall confirm the original Report and explain why the error allegations are unfounded in the Response.

7.4. The Supplier shall review Xsolla's Response within five (5) Business Days of receipt and notify Xsolla of any objections. If the Supplier expressly confirms a Report or Response, or if the Supplier fails to notify Xsolla of any objections within the time periods set forth in this Section 7 (ninety (90) day period for the original Report or five (5) day period for a Response), the Supplier waives its rights to contest the Report or Response, as applicable, and any rights to seek an adjustment, and the Report shall be considered finally approved and accepted by the Supplier.

7.5. Even without objections or notifications from the Supplier, Xsolla may, at its own initiative and at any time, discover and correct errors in a Report and issue a new, corrected Report as well as information on any difference payable by or to the Supplier. The Supplier shall confirm or object to such new and corrected Report within the contestation periods and process set forth in Sections 7.2- 7.4 of this Agreement. If the Supplier expressly confirms a new, corrected Report or Response per Section 7.4, or if the Supplier fails to notify Xsolla of any objections within the time periods set forth in Section 7 (ninety (90) day period for the Report or five (5) day period for a Response), the Supplier waives its rights to contest the new, corrected

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Report or Response, as applicable, and any rights to seek an adjustment, and the new, corrected Report shall be considered finally approved and accepted by the Supplier.

8. DATA PROTECTION, SECURITY MEASURES AND FEEDBACK

8.1. The Parties warrant and guarantee transfer of personal data to each other on a lawful basis in accordance with requirements of applicable data protection, data privacy and cybersecurity laws, rules and regulations, including, but not limited to Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 (the "**GDPR**"), the California Consumer Privacy Act of 2018 (the "**CCPA**"), the California Privacy Rights Act (CPRA) of 2023 (the "**Applicable Data Protection Legislation**"), and due notification of data subjects of such transfer if required by applicable legislation for the purpose of performing this Agreement by the Parties and in order to exercise rights, fulfill obligations and comply with prohibitions and (or) restrictions under the Data Processing Agreement (the "**DPA**") attached hereto as Exhibit 3 and applicable Territory Laws and Regulations.

8.2. The Parties agree that non-personal information obtained from End-Users, such as feedback and suggestions, shall be available to the Parties for any purpose, subject to Territory Laws and Regulations and applicable privacy policies.

8.3. Xsolla complies with the Payment Card Industry Data Security Standard and also has the SOC 1 Type 2, SOC 2 Type 2 certification (collectively "**Security Standard**"). However, the Supplier is solely responsible for the security of the data and billing information on its websites and provided within Supplier's content. Xsolla will not monitor Supplier's websites for compliance and therefore is not able to verify whether Supplier's internal processes and policies comply with the Security Standard.

9. MARKS

9.1. Subject to the terms of this Agreement, the Supplier grants to Xsolla and Xsolla's Affiliates a limited, non-exclusive, non-transferable, sublicensable, irrevocable license to use its name, Supplier's Marks, Software name, and any visual and audio representations of related assets uploaded by the Supplier through the Xsolla Systems for (a) trade events, (b) use in/on Xsolla's and/or its Affiliates software, products, websites, banners, advertising/informational materials, and presentations for potential partners and End-Users, (c) promoting the authority of the Supplier in the Territory, and (d) performing Xsolla's obligations under this Agreement, without further additional approve from the Supplier.

9.2. Subject to the terms of this Agreement, Xsolla grants to the Supplier a limited, non-exclusive, non-transferable, non-sublicensable, revocable license to use Xsolla's Marks ("**Marks License**") solely for promoting the authority of Xsolla in the Territory and performing Supplier's obligations under this Agreement. Any other use of Xsolla's Marks without Xsolla's prior written consent is prohibited. The Supplier may use Xsolla's Marks that are not specifically set forth herein after obtaining written consent from Xsolla.

9.3. A Party's use of the other Party's Marks shall be subject to the Technical Documentation, such other Party's trademark usage and quality control guidelines, as may be amended from time to time, and the terms and conditions of this Agreement. Each Party shall use the other Party's Marks only in the form, colors, design, and manner approved by such other Party.

9.4. Without limiting the foregoing, each Party shall not: (a) modify or alter the other Party's Marks; (b) combine the other Party's Marks with third-party Marks; (c) adopt or register any Marks similar to the other Party's Marks; (d) use the other Party's Marks, or any portion thereof, as a domain name; or (e) use the other Party's Marks in any manner that is likely to reduce, diminish, or damage the goodwill, value, or reputation associated with such Marks or violate the rights of any third parties.

9.5. Neither Party has paid any consideration for use of the other Party's Marks and shall have no equitable or legal right, title, or interest in or to the other Party's Marks. All right, title, and interest to a Party's Marks shall remain in such Party. Each Party shall make no further use of the other Party's Marks for any purpose

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whatsoever upon termination of this Agreement.

10. REPRESENTATION AND WARRANTIES

10.1. Each Party hereby represents and warrants to the other that: (a) they are legally formed and currently in good standing; (b) they are authorized to conduct business in all jurisdictions in which they operate; (c) entering into this Agreement will not violate any other obligations they have; (d) they have taken all necessary steps to authorize this Agreement; and (e) they and their affiliates will comply with all applicable Territory Laws and Regulations.

10.2. The Supplier:

- acknowledges and agrees to implement a game rating system for all Software sold by and through the Supplier Website, Download Services and Xsolla Systems. The game rating system shall be in accordance with the industry standards set forth by the relevant organization or governing body charged with enforcing said system. The Supplier shall display the rating prominently on the Supplier Website, Download Services, and shall not sell or make available any Software that exceeds the age limitations set by the rating system. The Supplier shall be solely responsible for ensuring that its implementation of the game rating system and age verification process complies with all applicable Territory Laws and Regulations. In the event of any non-compliance, the Supplier shall immediately take all necessary actions to remedy the non-compliance;
- represents and warrants that the Supplier has the necessary Intellectual Property Rights to grant the Software License;
- represents and warrants that the Software and its Marks do not violate or infringe any Intellectual Property Rights;
- represents and warrants that the Supplier is in compliance with open source or public source licenses they are party to.

10.3. Xsolla represents and warrants that a) Xsolla has the necessary Intellectual Property Rights to grant the Xsolla Systems; b) Xsolla Systems and Xsolla Marks do not violate or infringe any Intellectual Property Rights; c) Xsolla is in compliance with open source or public source licenses they are party to.

10.4. Each Party represents and warrants that neither it, nor any of its employees, Affiliates, or beneficiaries, is listed on the Specially Designated Nationals and Blocked Persons List maintained by the OFAC of the U.S. Department of the Treasury, or on any similar list maintained by any other relevant government agency or authority. The Party agrees to promptly notify other Party in writing in the event it or any of mentioned parties becomes listed on any such list during the term of this Agreement.

10.5. The Supplier agrees that the Software shall not contain or disseminate: (a) pornographic or sexually explicit material with minors or other inappropriate content; (b) advertising for real tobacco or alcohol brands; (c) deceptive or fraudulent schemes; (d) spyware, malware, viruses, or other harmful code; (e) content promoting violence, discrimination, harassment, or hate speech; (f) gambling; or (g) any other prohibited content in accordance with Territorial Laws and Regulations.

10.6. **Non-Solicitation.** For one (1) year after the Agreement's termination, each Party shall not recruit or solicit employees of the other Party or its Affiliates who they interacted with during the agreement. This does not prevent the Party from: (a) placing general advertisements for employees; (b) soliciting persons found through employment search firms; or (c) hiring anyone who contacts them without prior solicitation.

11. TERM AND TERMINATION

11.1. This Agreement, including the term of the Software License and the Xsolla Systems License, shall commence on the Effective Date and, unless terminated sooner as provided in this Agreement, shall

continue for one (1) year thereafter, automatically renewing for additional one-year terms, unless either Party gives written notice of non-renewal to the other Party at least thirty (30) calendar days prior to the expiration of the then-current term (the "**Term**").

11.2. Each Party may terminate this Agreement upon thirty (30) calendar days' prior written notice to the other Party, provided that in cases where the Supplier has no violations or debts under the Agreement.

11.3. Notwithstanding Section 6.1 of this Agreement, in the event of termination the remaining amount of Royalty Fees shall be transferred to the Supplier within one hundred and eighty (180) calendar days after the day of termination.

11.4. Each Party shall have the right to terminate this Agreement, including the Software License and the Xsolla Systems License, if the other Party commits an act of, or is subject to, a Default. For purposes of this Agreement, "Default" means any one or more of the following events: (a) a Party commits a material breach of this Agreement and, if such breach is capable of being cured, does not cure such breach within thirty (30) calendar days after notice thereof from the other Party; (b) a Party is the subject of a dissolution, reorganization, insolvency, or bankruptcy action that is not dismissed within forty five (45) calendar days of being filed or suffers the appointment of a receiver, conservator, or trustee, (c) there is a breach of terms according to Section 5 of the DPA (Exhibit 3). Notwithstanding the foregoing, the obligations of Sections 2.3, 3.3, 6, 12, 13, 14, 15, 16, 17 and 18 will survive the expiration or termination of this Agreement in accordance with their terms.

11.5. Upon termination of this Agreement, all rights and licenses granted under this Agreement, including the Software License and the Xsolla Systems License, will immediately terminate. Notwithstanding the foregoing, after the termination of this Agreement, the Supplier shall continue to provide the Software to End-Users pursuant to the User Documentation. Termination of this Agreement shall not impact any of the Parties' rights or obligations arising prior to termination. The sections of this Agreement, which by their nature survive, will survive any termination of this Agreement in accordance with their terms.

11.6. This Agreement may be unilaterally terminated by Xsolla without prior notice to the Supplier if (a) no End-User Sales are made within six months; (b) Xsolla becomes aware that the Software violates the rights and interests of third parties, (c) the sale of the Software to End-Users causes Xsolla any harm, including financial and reputational harm, or (d) a claim has been filed or an investigation has been initiated against the Supplier by any government agency.

12. CONFIDENTIALITY

12.1. **Confidential Information.** During the Term, each Party (the "**Disclosing Party**") may disclose to the other Party (the "**Receiving Party**") confidential or proprietary information in connection with this Agreement, which is designated as confidential or proprietary or that, given the nature of the information or the circumstance of the disclosure, reasonably should be considered as confidential, including, without limitation, technical data, trade secrets, plans for products or services, customer or the Supplier lists, databases, marketing plans, software, source code for software, financial documents or data, inventions, processes, technology, designs, and the terms of this Agreement (collectively, "**Confidential Information**"). Notwithstanding the foregoing, Confidential Information shall not include information that (a) was known to the Receiving Party prior to receipt from the Disclosing Party, as established by documentary evidence; provided, that the source of the information was not bound by confidentiality obligations to the Disclosing Party; (b) is or becomes generally available to the public other than as a result of disclosure by the Receiving Party; (c) becomes available to the Receiving Party on a non-confidential basis from a third party; provided, that the Receiving Party did not know, or have any reason to believe, that such third-party source was subject to an obligation not to disclose such information; (d) is approved for release in writing by the Disclosing Party; or (e) is independently developed by the Receiving Party without use of or reference to the Disclosing Party's Confidential Information, as shown by documents and other competent evidence in the Receiving Party's possession.

12.2. **Restrictions on Use of Confidential Information**.

During and after the Term, the Receiving Party agrees to keep the Disclosing Party's Confidential Information confidential, only disclosing it to their Affiliates, employees, officers, directors, and agents who need to know for the purpose of performing their obligations under the agreement. The Receiving Party must protect the Confidential Information with the same care as their own, establish safeguards to prevent unauthorized disclosure, and notify the Disclosing Party of any breaches immediately. Notwithstanding the foregoing, the Receiving Party may publicly disclose the existence of this Agreement and its general terms, as well as publicly discuss the partnership and the games sold under the agreement, without the prior consent of the Disclosing Party.

The Receiving Party must notify the Disclosing Party of any legal requirement to disclose Confidential Information and help contest the disclosure. If the disclosure cannot be avoided, only the minimum required information will be disclosed, and commercially reasonable efforts will be made to ensure confidential treatment.

12.3. **Return of Confidential Information.** Upon termination of the Agreement, the Receiving Party must return or destroy the Disclosing Party's Confidential Information as requested by the Disclosing Party. The Receiving Party may keep an archived copy of the information solely for compliance with applicable Territory Laws and Regulations but cannot use it for any other purpose. All Confidential Information disclosed hereunder shall remain the property of the Disclosing Party and, upon termination of this Agreement, upon the Disclosing Party’s written request, the Receiving Party shall return (or destroy at the Disclosing Party’s direction) the Disclosing Party’s Confidential Information. Notwithstanding the foregoing, the Receiving Party may retain one archived copy of the Disclosing Party’s Confidential Information, subject to the terms of this Agreement, solely to the extent required for purposes of complying with Territory Laws and Regulations and may not be used for any other purpose.

13. INDEMNITY

13.1. **Indemnification by the Supplier**. The Supplier shall defend and protect Xsolla, its Affiliates, and their respective employees, officers, directors and agents against all claims, damages, penalties, expenses and legal fees arising from a third-party's claim due to any breach of the Agreement by the Supplier (“Claims”). This indemnification also includes any claims arising from the use or misuse of the Software by End-Users or any other third parties which means that Xsolla shall not be responsible for any End-User behavior or decisions made within the game, after the game, or otherwise, and any disputes about the game's gameplay and meaning should be resolved directly with the Supplier. This indemnification does not apply if the claim arises from Xsolla's unauthorized use, modification, change, amendment, customization, or adaptation of the Software or Supplier's Marks. If the software becomes subject to a third-party infringement claim, the Supplier may at its expense either secure Xsolla's right to use it, replace/modify it to be non-infringing or terminate the Agreement.

13.2. **Indemnification by Xsolla**. Xsolla shall indemnify, defend, and hold harmless the Supplier, its Affiliates, and its and their respective employees, officers, directors, and agents from and against any Claims arising out of or resulting Xsolla’s breach or alleged breach of this Agreement.

13.3. **Indemnification Procedure**. The indemnifying party's obligation to indemnify is conditioned on the indemnified party (a) promptly informing the indemnifying party in writing of any claim, (b) promptly giving control of defense and settlement to the indemnifying party, and (c) cooperating reasonably with the indemnifying party in investigating, defending, and settling the claim. The indemnifying party can't settle a claim in a way that causes liability to the indemnified party without their prior written consent.

14. DISCLAIMERS

EXCEPT AS EXPRESSLY PROVIDED IN THIS AGREEMENT, AND TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE TERRITORY LAWS AND REGULATIONS, NEITHER PARTY MAKES ANY REPRESENTATIONS OR WARRANTIES OF ANY KIND, EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE,

RELATED TO OR ARISING OUT OF THIS AGREEMENT OR THE LICENSES AND SERVICES PROVIDED HEREUNDER, INCLUDING, BUT NOT LIMITED TO, ANY IMPLIED WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE.

15. LIMITATION OF LIABILITY

15.1. EXCEPT AS PROVIDED IN SECTION 15.2, IN NO EVENT SHALL A PARTY BE LIABLE FOR: (A) ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, RELIANCE, SPECIAL, EXEMPLARY, OR PUNITIVE DAMAGES ARISING FROM OR RELATING TO THIS AGREEMENT; OR (B) ANY DIRECT DAMAGES ARISING FROM OR RELATING TO THIS AGREEMENT TO THE EXTENT THAT THE AGGREGATE AMOUNT OF SUCH DAMAGES EXCEEDS $100,000.00.

15.2. THE LIMITATIONS OF LIABILITY SET FORTH IN SECTION 15.1 SHALL NOT APPLY WITH RESPECT TO A PARTY'S INDEMNIFICATION OBLIGATIONS UNDER SECTION 13 OR A PARTY'S BREACH OF ITS CONFIDENTIALITY OBLIGATIONS UNDER SECTION 12, BUT OTHERWISE SHALL APPLY REGARDLESS OF THE FORM OF CLAIM OR ACTION AND WHETHER OR NOT DAMAGES WERE FORESEEABLE.

15.3. IN NO EVENT SHALL A PARTY BE LIABLE FOR ANY CLAIMS, DEMANDS, OR ACTIONS UNRELATED TO THIS AGREEMENT.

15.4. WITHOUT LIMITING ANY OTHER PROVISIONS OF THIS SECTION 15, XSOLLA SHALL NOT BE RESPONSIBLE FOR THE QUALITY, SAFETY, LEGALITY, OR ANY OTHER ASPECTS OF THE SOFTWARE AND ANY CLAIMS BY END-USERS RELATED THERETO.

16. GOVERNING LAW; DISPUTE RESOLUTION; JURISDICTION/VENUE

16.1. This Agreement shall be governed by and construed in accordance with the laws of the State of California, USA, without regard to choice of law principles.

16.2. In the event of any dispute between the Parties arising from or relating to this Agreement, a Party may send the other Party written notice identifying the matter in dispute. The Parties shall thereafter consult and negotiate with each other in good faith and, recognizing their mutual interests, attempt to reach a just and equitable solution of the dispute satisfactory to both Parties.

16.3. In the event that, within thirty (30) calendar days following the initial written notice described in above, the Parties have not resolved the dispute, either Party may submit the dispute to be resolved by arbitration by one arbitrator ("**Arbitrator**") in accordance with the then-current Commercial Arbitration Rules of the American Arbitration Association (or, if the Parties mutually agree in writing, the then-current arbitration rules of the International Chamber of Commerce), Territory Laws and Regulations, and the provisions of this Agreement. Xsolla shall have the sole discretion to appoint the Arbitrator; provided, however, that the Arbitrator shall (a) not be a current or former employee of Xsolla; (b) have sufficient expertise in the subject matter of the dispute; and (c) not receive any payments from Xsolla, except in accordance with the provisions of this Section 16. The place of arbitration shall be Los Angeles, California, USA. The cost of any arbitration shall be shared equally by the Parties, but the Arbitrator shall be authorized to enter, as part of the award to a Party, an amount equal to reasonable attorneys' fees and other costs related to the arbitration. The Arbitrator may award equitable relief. The Arbitrator's decision(s) shall be final and conclusively binding on the Parties, and judgment upon such award may be entered in any court of competent jurisdiction.

17. FORCE MAJEURE

Neither Party nor its Affiliates shall be liable to the other Party for delay or failure in performance under this Agreement arising out of any circumstances outside of its reasonable control, including, but not limited to, fires,

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floods, explosions, earthquakes, power surges or failures, strikes or labor disputes, acts of God, war, civil disturbances, acts of civil or military authorities, inability to obtain parts or supplies, fuel or energy shortages, acts or omissions of any common carrier or its agents; provided, that the Party seeking excuse from liability promptly notifies the other Party of such circumstances and uses commercially reasonable efforts to resume its performance as soon as possible.

18. MISCELLANEOUS

18.1. This Agreement, including the Technical Documentation and any Exhibits attached hereto, sets forth the entire agreement and understanding between the Parties as to the subject matter hereof and supersedes all prior discussions, agreements, and understandings of any kind, whether written or oral, and every nature between them.

18.2. This Agreement shall not be changed, modified, or amended except in writing and signed by the Parties.

18.3. Neither Party may transfer or assign (voluntarily, involuntarily, by operation of law, or otherwise) this Agreement or any of its rights or obligations under this Agreement, in whole or in part, without the other Party's prior written consent, which shall not be unreasonably withheld, conditioned, or delayed.

18.4. No agency, joint venture, partnership, or employment relationship is created between the Parties by way of this Agreement. In the performance of their respective obligations hereunder, each Party is, and will be, an independent contractor. Except as expressly stated in this Agreement, neither Party will bind, or attempt to bind, the other Party to any contract or the performance of any obligation, and neither Party will represent to any third party that it has any right to enter into any binding obligation on the other Party's behalf.

18.5. The invalidity or unenforceability of any provision of this Agreement will not affect the validity of this Agreement as a whole and any such provision should be enforced by authorities, and reconstructed, if need be, to apply to the maximum extent allowable under Territory Laws and Regulations. The failure of a Party to enforce at any time any provisions of this Agreement, to exercise any election or option provided herein, to require at any time the other Party's performance of any of the provisions herein, or to enforce Parties' rights under this Agreement or Territory Laws and Regulations will not in any way be construed as a waiver of such provisions or rights. The section headings used herein are for convenience only and will not be given any legal import.

18.6. Except as otherwise required by Territory Laws and Regulations, all notices and other communications required or permitted under this Agreement must be in writing and delivered by overnight delivery, email, or facsimile to the addresses or numbers set forth on the signature page of this Agreement or as otherwise updated from time to time by providing notice in accordance with this Section 18.6. Except as otherwise required by Territory Laws and Regulations, all such notices will be deemed given upon transmission when transmitted by facsimile or other electronic transmission or upon delivery when sent by a nationally recognized overnight service with delivery confirmation.

18.7. This Agreement may be executed in counterparts, each of which shall be an original, but all of which shall constitute one, and the same, document. The Parties agree, subject to Territory Laws and Regulations, that execution and delivery of this Agreement by electronic means, such as DocuSign or Dropbox Sign, will have the same effect as original signatures. Additionally, the signature of the head or a person with the authority to sign by proxy shall be considered valid. Alternatively, the Parties may exchange original copies of this Agreement bearing their respective signatures.

19. EXHIBITS

All exhibits attached to this Agreement are hereby incorporated into this Agreement and shall be deemed an integral part of this Agreement. By signing this Agreement, the Supplier agrees to be bound by all the terms and conditions contained in the Exhibits, as well as in this Agreement. In the event of any inconsistency or conflict between the provisions of this Agreement and the provisions of any Exhibit, the provisions of this Agreement shall prevail unless

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otherwise expressly stated in the Exhibit.

[*Signature page follows*.]

IN WITNESS WHEREOF, the undersigned have executed this Agreement as of the Effective Date.

Xsolla:
Xsolla (USA), Inc.

서명인:
92B35724E64A46D...

10/1/2024

Signatory: Jayden Lee
Title: Senior Vice President, APAC, acting under the PoA dated September 15, 2023

Address: 15260 Ventura Blvd., Suite 2230, Sherman Oaks, CA 91403 USA
Office Voice Phone: +1(818) 435-6613
Email Address: support@xsolla.com
Web URL: https://xsolla.com

The Supplier
ZERO X AND PTE. LTD.

Signed by:
2F987ACBF3B3481...

9/30/2024

Signatory: Seokjun Kim
Title: CEO

Address: 189767, Singapore, 38 BEACH ROAD #17-12 SOUTH BEACH TOWER
Phone Number: +65 3138 3754
Contact person name and email address: Seokjun Kim, alma@0xtribe.com
Taxpayer Identification Number (applicable to entities, sole proprietors and individuals): 202138132M
Entity/individual: Entity

Exhibit No. 1

Royalty Fees

Royalty Fees shall be calculated as follows: F = (K * R) – C – T – A

F = amount of Royalty Fees due each month
K = coefficient (K=0.95)
R = total amount of End-User Fees actually received by Xsolla during the applicable month
C = charges, fees, applied deductions, and other costs imposed on Xsolla by current or future payment service providers/agents/third party services for the End-User Sales during the applicable month, including, but not limited to, applicable currency conversion fees, chargeback fees, payment service provider and credit card fees, broker fees, and refund fees
T = amount of applicable taxes required to be collected in connection with End-User Sales and payment of the Royalty Fees during the applicable month
A = all fees and charges imposed by Xsolla for Xsolla Systems if the Supplier has chosen any additional Xsolla Product that is not provided free of charge
CG = amount as advised from time to time by Xsolla, which represents (1) the number of unique users multiplied by (2) the number that represents the (i) duration (time) multiplied by (ii) the associated Cost (such Cost to include any Capacity costs (where Xsolla deploys hardware to prevent users from experiencing wait times). The Cost includes several factors and depends on several factors, including: geographical distribution of servers, vendor, type of hardware (hardware expenses calculated based on usage time). Additional expenses may apply if free Virtual Currency is used. If payments are made on the Cloud Gaming Platform, K = coefficient (K = 0.90).

In the event that the Supplier wishes to engage Xsolla to sell, sublicense, market, make available, deliver, and distribute the specific Supplier's products through Xsolla Mall using the Xsolla Systems, Royalty Fees for that End-User Sales shall be calculated as follows: F = (K * R) – T

F = amount of Royalty Fees due each month
K = coefficient (K=0.85)
R = total amount of End-User Fees actually received by Xsolla during the applicable month
T = amount of applicable taxes required to be collected in connection with End-User Sales and payment of the Royalty Fees during the applicable month

Supplier agrees that any resulting currency conversion fees, chargeback and refund fees charged by payment service providers/agents/third party services for the End-User Sales shall be deducted from such Royalty Fees.

If the Royalty Fees due in a particular month are less than USD 5,000, such Royalty Fees will not be paid in the particular month and will be carried forward for subsequent months until the total amount of the Royalty Fees is equal to or greater than USD 5,000.

Notwithstanding the foregoing, payout of Royalty Fees in the amount less than USD 5,000 might be made per Supplier's request no more often than once a month and only in case all associated bank transfer costs are paid by Supplier.

If the total amount of deductions exceeds the Royalty Fees, Xsolla shall carry forward the remaining amount and withhold it from subsequent amounts of Royalty Fees that are due to the Supplier in accordance with this Agreement until such amount is fully paid. If any End-User Fees are subsequently refunded, returned, or reversed for any reason, Xsolla may offset such amount against its future payment of Royalty Fees hereunder.

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Supplier’s Bank Account Information:

Payout Method: Bank wire transfer

Account Name: ZERO X AND PTE. LTD.
Bank Name: OCBC Bank
Bank Address: 65 Chulia Street, OCBC Centre Singapore 049513
SWIFT Code: OCBCSGSGXXX
IBAN/Account Number: 601441587201

If the Supplier's bank details change, the Supplier must notify Xsolla in writing with the new information no later than five (5) Business Days before the next Royalty Fees payment. Xsolla is not responsible for the transfer of Royalty Fees to outdated details if the change of details is not reported. If the details change, signing an amendment to this Agreement is not required; notification on the Supplier's official letterhead is sufficient.

Exhibit No. 2

Form of Report

REPORT

Date:

Part A: Information about the Contracting Party

Name	Agreement details
Address	Bank details

Part B: Contracting Party's Revenue Share

Over a period starting [DATE] until [DATE] (the "Reporting Period"), the total amount of End-Users Sales.	
The total amount of Royalty Fees due for the Reporting Period	
Balance due as of [DATE]	
The total amount of Royalty Fees paid out to the Supplier during the Reporting period	
The total amount due as of [DATE]	
The total amount of cancelled or otherwise returned Software copies	
WHT	
Cloud Gaming	
Number of transfers of non-exclusive right	
The total amount to be transferred to the Supplier	

Error Notifications

If you discover any errors in your Report, you must notify Xsolla (USA), Inc. of them within **ninety (90) calendar days** of receiving the Report. Xsolla (USA), Inc. shall use all available means to correct any billing errors within thirty (30) calendar days of receipt of Supplier's notification and provide the Supplier with a Response.

If you fail to notify Xsolla (USA), Inc. within the time periods set forth in Section 7 (90 day period for the original Report or 5 day period for a Response), you will waive your right to contest the Report and seek an adjustment, and the Report shall be considered final and accepted.

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To submit your error notification, please include detailed information to aid in identifying the cause of the error so that we can resolve it in a timely manner. Please email your error notification to reports@xsolla.com.

Exhibit No. 3

DATA PROCESSING AGREEMENT (the "DPA")

Controller to Controller

1. **General**. In this DPA, capitalized terms shall have the meanings set out in **Annex 1 (Definitions and Details of Processing)**. In the event that any terms of this DPA and its appendices are inconsistent with any other terms of the Agreement, the Parties intend for the terms of this DPA, its appendices, and the Agreement to be construed in the manner that permits the Supplier to fulfill its obligations under Applicable Data Protection Legislation.

2. **Parties Obligations: general data processing commitments**

   a. With respect to Personal Information Processed by the Parties in connection with the Agreement or otherwise in the possession or control of the Parties: (i) each of the Parties independently determines the purposes and means of the Processing of Personal Information and acts as an independent Data Controller; (ii) the Parties do not jointly determine the purposes and means of the Processing and do not act as joint Data Controllers; (iii) neither of the Parties Processes Personal Information on behalf of the other Party and does not act as a Data Processor; (iv) each of the Parties shall independently take all necessary measures to comply with Applicable Data Protection Legislation.

   b. Each Party ensures that: (i) the Personal Information is collected and processed in a lawful manner; (ii) it has provided data subjects with appropriate transparency regarding data collection and use and all required notices and has obtained any and all consents or permissions; (iii) the Personal Information is accurate and kept up to date. The Parties shall notify the other Party with undue delay if they become aware of any inaccuracies of the Personal Information; (iv) it maintains a publicly accessible privacy policy on its website/software application that satisfies the transparency disclosure requirements.

   c. In the situation where a Party is the initial Controller between itself and the data subject and it relies on consent as its legal basis for the processing of Personal Information processed under the present DPA, it shall ensure that it obtains a proper consent from data subjects.

   d. The extent and type of Personal Information to be Processed under the Agreement, and the categories of data subjects are set out in **Annex 1**. The details of the Personal Information listed in **Annex 1** may also be restricted in certain territories on a case-by-case-basis subject to the requirements of Applicable Data Protection Legislation.

   e. The Parties will implement and maintain technical and organizational security measures to adequately protect Personal Information against the risks inherent in the Processing of Personal Information for the purposes identified in the Agreement, and risks from unauthorized or unlawful Processing and destruction, damage, misuse and loss. The Parties will implement and maintain reasonable security procedures and practices appropriate to the nature of the Personal Information it Processes.

   f. The Parties ensure that each of their personnel: (i) have undertaken to comply with confidentiality obligations in respect of such Personal Information, which confidentiality obligations will continue after the termination of the Agreement; and (ii) are aware of the procedures that the Party has put in place and receive appropriate training on data protection and security.

   g. In the event that either Party is subject to an audit by a Supervisory Authority, such Party agrees to cooperate with the other Party and the Supervisory Authority.

   h. In the event that one Party suffers a personal Security Incident or has reasons to believe that a Security Incident has occurred, each Party will promptly and without undue delay and in any case no later than twenty-four (24) hours period of becoming aware, notify the other Party. The Party responsible for the Security Incident undertakes to take all the necessary measures to investigate and mitigate the effects of the event. The Parties shall cooperate in good faith in relation with the Security Incident. Communication regarding this

Security Incident must remain strictly confidential and must be performed only to formally identified persons within Parties organization and reported only to the Supplier email specified below.

i. Personal data breach notification must only be sent by email

a) **to the Supplier** at alma@0xtribe.com with the object: "**Xsolla Security Incident**",

b) **to Xsolla** at the email address: privacy@xsolla.com with the object: "**ZERO X AND PTE. LTD. Security Incident**".

This notification must include: (i) description of the nature of the Security Incident, including to the extent possible, the categories and numbers of data subjects affected, and the categories and numbers of Personal Information records concerned; (ii) the name and contact details of Party data protection officer or other relevant contact from whom information may be obtained; (iii) a description of the likely consequences of the Security Incident; and (iv) a description of the measures taken or proposed by the Party to address the Security Incident, including, where appropriate, the actions taken to mitigate any adverse consequences.

j. The Parties agree and warrant that they will cooperate with each other so that it will be able to meet its obligation to notify Supervisory Authorities of the data breach if required by Applicable Data Protection Legislation.

3. Parties Obligations: compliance with laws, data transfer, and data deletion

a. The Parties shall, in Processing Personal Information, comply with all Applicable Data Protection Legislation.

b. The Parties agrees that they are guided by standard data protection clauses adopted by the European Commission which are mentioned in the 2021/914/EC: Commission Decision of 04 June 2021 on standard contractual clauses for the transfer of personal data to third countries, pursuant to Regulation (EU) 2016/679 of the European Parliament and of the Council (the "**SCC**") that are incorporated within the present DPA as appropriate safeguard for the transfer of personal data from the European Economic Area to third countries. The Parties use Module One "Transfer controller to controller" and applicable for this module terms of the SCC. Details that should be provided in Annex I-III to SCC set forth in **Annex 1**.

c. The Parties will provide all reasonable assistance to each other as may be necessary to legitimize any Processing or data transfer of Personal Information and to ensure an adequate level of protection for Personal Information. In the event that any Supervisory Authority holds that a data transfer mechanism relied on by the Parties is invalid, or any Supervisory Authority requires transfers of Personal Information made pursuant to such decision to be suspended, then the Parties may, at their discretion, decide to cease Processing Personal Information, or co-operate with it to facilitate use of an alternative transfer mechanism.

4. Term

The term of this DPA commences as of the DPA Effective Date and will end upon Xsolla's return or destruction (to be confirmed in writing) of all Personal Information Processed by Xsolla under the Agreement.

5. Indemnity

a. If a Party reasonably believes and can prove that the other Party does not comply with its obligations under the Agreement, the Party will request the other Party to mitigate the risks and restore compliance without undue delays. Without any actions taken within thirty (30) calendar days and no agreement of the remediation actions plans, the Party shall have the right to suspend or terminate all or any part of the Agreement, effective on the date on which the breaching Party is so notified by such Party, which notification shall be sent by registered mail, return receipt requested.

b. Each Party shall indemnify and hold harmless the other Party from and against any and all actions and/or claims by third parties – including data subjects, and from and against any administrative fines imposed on such Party by a Supervisory Authority for an alleged breach of Applicable Data Protection Legislation caused by the failure of the other Party, or any or of its sub-processors it has engaged, to comply with its data Processing obligations hereunder.

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6. Governing Law

Unless otherwise required by the Standard Contractual Clauses or other data transfer requirements, this DPA will be subject to the governing law identified in the Agreement without giving effect to conflict of laws principles.

Annex No. 1

DEFINITIONS AND DETAILS OF PROCESSING

1. For purposes of this DPA, the following terms will have the following meanings:

   a. "**Data Controller**" means the person or entity which, alone or jointly with others, determines the purposes and means of the Processing of Personal Information;

   b. "**Data Processor**" means the person or entity which Processes Personal Information on behalf of the Data Controller;

   c. "**Personal Information**" shall mean: (1) any information relating to an identified or identifiable natural person; and (2) any information defined as "personally identifiable information," "personal information," "personal data" or similar terms as such terms are defined under Applicable Laws or regulations, limited to that Personal Information Xsolla Processes in connection with Services provided to the Supplier.

   d. "**Process**" **or "Processing"** means any operation or set of operations performed upon Personal Information, whether or not by automatic means; and

   e. "**Security Incident**" means (i) any serious interruption of Party's Processing operations; (ii) any unauthorized acquisition, loss, access, or use of Personal Information; or (iii) any breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosures of, or access to, Personal Information or any reasonable suspicion of a Security Incident, regardless of its cause.

   f. "**Supervisory Authority**" means the independent public authority responsible for monitoring the application of Applicable Data Protection Legislation.

2. The details of the Processing of Personal Information carried out by the Parties are as follows:

   a. **Data subjects**: Xsolla will Process Personal Information relating to the following data subjects (check all that apply):

      [_] employees or contractors

      [X] End-Users of the Supplier's Software

      [_] other (specify where possible):

   b. **Categories of data**: Xsolla may Process the following categories of Personal Information (check all that apply):

      [X] personal identification (name)

      [X] contact details (email)

      [X] billing and payment information (e.g., partial credit card number, country from which a purchase originated)

      [X] IP address

      [_] digital, device and social identifiers or digital profiles)

      [_] any other categories of Personal Information provided by the Supplier to Xsolla in connection with the Services (specify where possible): **[_____]**

      No sensitive Personal Information is processed.

   c. **Purposes of Processing operations**: to license the Software to data subjects (end-users); to comply with

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Applicable Data Protection Legislation and other applicable laws (including copyright, defamation, tax, etc.).

d. **Duration of Processing**: during the Term of the Agreement as well as no more than five years after that in anonymous form in order to combat fraud and for reporting purposes.

e. **The frequency of the transfer**: mostly constantly, depends on the Software sales.

f. **Nature of the processing**: collection, recording, organisation, structuring, storage, use, disclosure by transmission, restriction, erasure, or destruction of data.

g. **Competent supervisory authority.** Identify the competent supervisory authority in accordance with Clause 13: the competent supervisory authority Office of the Commissioner for Personal Data Protection.

The Parties agree that the SCC shall be governed by the law of Republic of Cyprus and any dispute arising from these SCC shall be resolved by the courts of this Member State.

3. **Security measures**: Applicable security measures include, at minimum:

a. Physical Access Control: (a) definition of persons who are granted physical access; (b) electronic access control; Issuance of access IDs; (c) implementation of policy for external individuals; (d) alarm device or security service outside service times; (e) division of premises into different security zones; (f) Implementation of key(-card) handling policy; (g) Implementation of measures for on-premise security (e.g. intruder alert/notification).

b. Logical Access Control: (a) definition of persons who may access data processing equipment; (b) password protection of personal computers.

c. Data Access Control: (a) allocation of separate terminals/work stations and of ID-parameters exclusively to specific functions; (b) Implementation of partial access rights for respective Data and functions; (c) Requirement of identification vis-a-vis the data processing system (e.g. via ID and authentication); (d) evaluation of protocols in case of damaging incidents.

d. Availability Control: (a) realization of a regular backup schedule; (b) control of condition and respective labelling of data carriers for data backup purposes; (c) implementation and regular control of emergency power systems and overvoltage protection systems; (d) implementation of an emergency plan; (e) protocol on the initiation of crisis- and/or emergency management.

4. **Sub-processors**: Payment System Providers as set forth in and activated by the Supplier in the Xsolla Systems for transacting End-User Sales.

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Exhibit No. 4

Software

The Parties hereby agree to include the following software titles in the definition of Software under this Agreement:

Software title：

“Ragnarok: Monster World”, year of publishing: 2024，country of the Software development Singapore，age rating: 12+ , purpose: video games and entertainment, represented as pooled data and code, designed for the functioning on Devices.